

CHAPTER - 2

Punishment In IPC

Under the law, punishment is provided to cease the wrongdoer from committing the crime again. Punishment is a consequence or result of a wrong committed by a person. Provision for punishment are provided under Sec 53 and chapter 3 of the Indian Penal Code (IPC). The Section defines various kinds of punishments to which the offenders are liable under the Indian Penal Code. The punishments given under Sec 53 apply only to offences given under this code

In India, the reformatory theory is followed to provide punishment. The punishment awarded should neither be so harsh nor so easy so that it fails to serve its purpose in generating impact on the offender and as an eye-opener for others. It is considered that punishment should be of such a nature that it brings reform in a person's personality and thinking

Sec 53 of the Indian Penal Code, 1860 prescribes 5 kinds of punishments.

- Death Penalty
- Life imprisonment
- Imprisonment
- Rigorous
- Simple
- Forfeiture of property
- Fine

Death Penalty

Death penalty is also called the capital punishment. Under this punishment, a person is hanged till he dies. The infliction of death sentence or taking away the offenders life by authority as a punishment for an offence is capital punishment or death penalty. In India it is awarded in rarest of rare cases

It may be awarded as punishment in the following offences:

Waging war against the government of India (Sec 121)
Abetting mutually actually committed (Sec 132)
Giving or fabricating false evidence upon which an innocent person suffers death (Sec 194)
Murder (Sec 302)
Murder by life convicts (Sec 303)
Abetment of suicide of a minor or an insane or intoxicated person (Sec 305)
Dacoity accompanied with murder (Sec 396)

Kidnapping for ransom (Sec 364A)

Case Law

Bachan Singh Vs the State of Punjab (AIR 1980 SC 898,1980)

Upheld the validity of the death penalty, but the court restricted the provision of the death penalty in rarest of rare cases only. If the case falls under this theory, then capital punishment may be given.

Jagmohan Singh Vs State of Uttar Pradesh (1973 AIR 947,1973 SCR (2)541)

The death penalty is unconstitutional and hence invalid as a punishment. The Supreme Court held the death penalty as valid. It held that deprivation of life is constitutionally lawful if that is done according to the procedure set by law

Life Imprisonment

The words imprisonment for life was substituted for transportation for life by Act XXVI of 1955. In its ordinary connotation imprisonment for life means imprisonment for the whole of the remaining life period of the convicted person's natural life. According to Sec 57 imprisonment for life shall be reckoned as equivalent to imprisonment for 20 years. But only for calculating fractions of terms of punishment imprisonment for life shall be reckoned as equivalent to imprisonment for 20 yrs. But otherwise the sentence of imprisonment for life is of indefinite duration

Case Law

Bhagirath And Ors Vs. Delhi Administration (1985 AIR 1050)

The supreme court of India defined imprisonment for life as imprisonment for the remainder of the natural life of the convict. If life imprisonment is given to a person, he shall stay in the prison for a minimum of 14 years and the maximum is the rest of his life.

Naib Singh V. State of Punjab And Ors. (AIR 1986 SC 2192)

The supreme court of India cleared the confusion with the duration of life imprisonment and section 55 of IPC. The court held that a life convict cannot claim for his release after serving 14 years in prison. Life imprisonment continues until the death of the prisoner.

The only exception to this is commutation and remission

Imprisonment

Imprisonment means taking away a person's freedom and putting him in prison

According to Sec 53 of the IPC, there are two kinds of punishments:

Simple: it is a punishment in which the offender is confined to jail only and not subjected to any hard labour

The following are some offences which are punishable with simple imprisonment:

Wrongful Restraint (Sec 341)

Uttering any word or making any sound or gesture with an intention to insult the modesty of a woman (Sec 509)

Misconduct in a public place by a drunken person (Sec 510)

Defamation (Sec 500,501,502)

Criminal misappropriation of property (Sec 403)

Rigorous:

In this case the offender is put to hard labour such as grinding corn, digging, cutting wood etc. The following are some offences which are punishable with rigorous imprisonment:

Kidnapping in order to murder (Sec 364)

Robbery (Sec 392)

Dacoity (Sec 395)

House breaking in order to commit offence punishable with death (Sec 449)

Case Law

Gautam Dutta Vs. State of Jharkhand (10 feb 2016)

The boy named Atif Mustafa get kidnapped intentionally and the kidnappers murdered him and disposed of his body to protect themselves from the criminal trial. M.D Safique is already in the court trial. During the court trial court find about his second crime of kidnapping a boy with his 3 friends. Court Find them

and convicted them for the offense of kidnapping which is punishable under Section 364a, 120b IPC.

Md.Munna Vs. Union of India and Ors (AIR 2005 SC 3440)

The writ petition is filed under article 32 of the Indian constitution. The petitioner was found guilty of murder. And previously he has already got imprisonment for life for 21 years. In this petitioner claimed that life imprisonment should be equivalent to 20 years and further subject to remission admissible under law

Forfeiture Of Property

Forfeiture implies the loss of property of the accused. Under this punishment, the state seizes the property of a criminal. It is the result of the wrong or default caused by the person. The property forfeited may be movable or immovable

In two provisions the forfeiture of the property has been abolished:

Under Section 126 for committing depredation on territories of power at peace with government of India.

Under Section 127 for receiving property taken during war or depredation mentioned in section 126 of IPC.

Fine

Fine can be simply defined as monetary punishment. Almost all the sections related with awarding punishment includes fine as punishment. However section 63 says where sum is expressed to which a fine may extend, the amount of fine to which the offender is liable is unlimited, but shall not be excessive

Case Law

Palaniappa Gounder Vs. State of Tamilnadu (1977 AIR 1323)

The apex court stated that the sentence given by the court shall be proportionate to the nature of the offence which includes the sentence of fine. And the punishment shall not be unduly excessive.